

Legal Descriptions

Metes and Bounds

Metes and bounds property descriptions are frequently found in deeds. **Metes** are the direction and distance of a line forming the boundary of the property. To find the direction, a compass was used indicating north, south, east, west as well as the degree of direction between 0 and 90. **Bounds** refer to the physical features that define the boundaries of the land. Common terms used in bounds might be the name of a tree, creek, owners of land bordering the property and even piles of rocks.

The language and numbers used in a metes and bounds property description is derived from a survey performed by a licensed land surveyor. A key consideration is the point of beginning. Unless it is easily identifiable, the rest of the description won't be of much use to anyone, because everything is based off of that beginning point. After identifying this point, the surveyor sights the direction to the next point.

An example of a metes and bounds description might include language like: *Beginning at a stake and stones about thirty feet from the center of the brook that runs across the road South westerly from the dwelling house of the late Jebediah Smith now occupied by the widow Callie Thornton and in the west line of the highway leading by the dwelling house now occupied by the widow Callie Thornton ...*

Monument

The monument method was once a common method of land description, but not so these days. A monument, just as the name implies, is a permanent visual landmark such as a stone wall, large tree, river bank, or boulder, or it may be a man-made monument, such as a brass plate or metal stake. Descriptions based on what may not actually be "permanent" landmarks (trees do fall down, after all) have given way to more accurate methods. These days, a monument isn't a legal description, but a component of one, often seen in metes and bounds legal descriptions. Description by monument is predominately used by surveyors when they must describe large tracts of land that would otherwise be very expensive to survey. Can you identify the monuments in the metes and bounds description above? We'll bold them here for you:

*Beginning at a **stake and stones** about thirty feet from the center of the **brook** that runs across the **road** South westerly from the dwelling house of the late Jebediah Smith now occupied by the widow Callie Thornton and in the west line of the **highway** leading by the dwelling house now occupied by the widow Callie Thornton ...*

Can you figure out why "the dwelling house of the late Jebediah Smith" is not used? Houses can be moved, torn down, or destroyed. Monuments are permanent man-made or natural landmarks. Monuments may be rocks, trees, streams, railroads, roads, intersections.

The type of monument used frequently by current surveyors are long iron rods driven vertically into the ground to mark corners of a property. Decades ago, land surveyors used wooden posts, which often didn't stand the test of time. Iron rods used today will have a cap on them identifying the surveyor who placed them.

Reference, Plat, or Lot and Block (Plat of Subdivision)

Another valid type of legal description is a description by reference, plat, or lot and block. A description of this type may be included in addition to, or in lieu of a metes and bounds description. A description by reference to a plat may refer to a plat map and lot number as part of a recorded subdivision. The description will cite the plat book and page number in which the map is recorded so that any interested party can look it up and determine the exact location and dimensions of the property.

Property may be described by reference to the section, block and lot on the tax map, or a prior recorded instrument. The legal description of a property under the Lot and Block system may be something like: *Lot 6 of Block 3 of the East Subdivision plat as recorded in Map Book 18, Page 11 at the Recorder of Deeds.*

The more technical details of the legal description are contained in the recorded plat map and so there is no need to include them in the deed.

The Rectangular Survey System

The rectangular survey system is also known as the government land survey system. It was adopted by Congress in 1785 and is used in many parts of the country as a legal method of describing and dividing land into **townships**. Each township contains 36 square miles (six miles squared) and each square is called a section. All its distances and bearings are measured from two lines that are at right angles to one another. These two lines are known the **baselines** (which run east and west) and the **principal meridians** (which run north and south).

Using these two points as reference, additional lines divide the land into strips six miles wide extending north and south and parallel with the principal meridian. The lines are called **range lines**. Other lines begin at the base line at intervals of six miles running east and west. These are designated as the **township lines**.

A public land survey system legal description would be something like *SE 1/4 SE1/4 NW1/4 SW1/4 SEC 11 T1S R1E*.